

Complaint Report (CCRB)

CCRB Case No :	201104532	C/V Report Date :	Tue, 04/05/2011
Complaint Type :	CCRB	Investigator :	Daniel Casados
Complaint Made At :	IAB	Ref. No	11-15266
Received Date (CCRB) :	Mon, 04/11/2011 01:40 PM	Mode :	Phone
Incident Date(s) :	Tue, 04/05/2011 6:44 PM		
Place of Occurrence:	[REDACTED]	Precinct:	52
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Summons - disorderly conduct		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	

Gender:

Person Assisting:

Ethnicity:

Date of Birth:

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
SGT	Robert King	Subject Officer		White	163	Physical force - (pushed/shoved/threw) - (F) Exonerated
SGT	Robert King	Subject Officer		White	163	Word - (D) Unsubstantiated
SGT	Robert King	Subject Officer		White	163	Race - (Hispanic) - (E) Unfounded
POM	Brandon Gembecki	Subject Officer		White	163	Stop - (A) Exonerated
POM	Gary Thompson	Subject Officer		Black	163	Stop - (A) Exonerated
POF	Marielena Derasmo	Subject Officer		White	163	Stop - (A) Exonerated
POF	Teresa Busweiler	Witness Officer		White	163	
SGT	Kimberly Motto	Witness Officer		White	163	

Initial Complaint Narrative

On April 6, 2011, the original log number 11-15179 was assessed as a CCRB spin-off for a FADO of force. On April 5, 2011, at approximately 7:24 p m., [REDACTED] [REDACTED] [REDACTED] called the command center in regard to the following: He stated that he was at [REDACTED] in the Bronx, when he and his other associates were approached by four police officers who instructed the group to move. [REDACTED] stated that [REDACTED] [REDACTED] [REDACTED] whose contact information [REDACTED] did not know, refused to take his hands out of his pockets, and when instructed to, [REDACTED] told the officers that he was cold and wanted to be given a reason why. [REDACTED] stated that Sergeant King exited a police car, approached [REDACTED] and punched him. [REDACTED] stated that [REDACTED] resisted. Sergeant King told [REDACTED] to sit down, and [REDACTED] stated, "I'm not sitting down." Sergeant King was able to push [REDACTED] to the ground and said, "Yeah, you gotta be like that." [REDACTED] was arrested. [REDACTED] did not report that anyone was injured [REDACTED] then spoke to the CCIO over the telephone and reiterated the above. However, he further stated that when he was approached by PO1 and PO2 (unidentified officers), who instructed the group to clear the corner, [REDACTED] [REDACTED] stated, "Why do I have to? I just came to say hello to my friends." [REDACTED] [REDACTED] was issued a summons.

Witness